JOHN MARINDA
and
INNOCENT CHAPWANYA
and
ALBERT JONASI ZVIDZAI
and
ECKNOS HAPPINESS MUTYANDA
versus
MINISTER OF LOCAL GOVERNMENT AND
PUBLIC WORKS AND NATIONAL HOUSING
and
MIDLANDS PROVISIONAL CHIEFS ASSEMBLY
and
ABRAHAM NYAMANDE

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE: 9, 17 June & 21 July 2025.

Opposed Application

D C Kufaruwenga, for the applicants
N L Mabasa, for the 1st & 2nd respondents
C Nyika, for the 3rd respondent

DEMBURE J:

INTRODUCTION

1. On 17 June 2025, the court handed down an *ex tempore* judgment in terms of which this application was struck off the roll with no order as to costs. On 27 June 2025, the applicants' legal practitioners requested the written reasons for the court's decision. The following are the full reasons for my decision.
2. Before the court is a court application filed by the applicants in terms of rule 59(1) of the High Court Rules, 2021. The application impugns the proceedings for the nomination of the third respondent as Chief Chirumhanzu by the first and second respondents at a meeting held on 6 June 2024 on the ground that they violated the

provisions of s 3 of the Administrative Justice Act [*Chapter 10:28*]. In the application, the following relief is sought:

> "1. The proceedings for the nomination of Chief Chirumhanzu which were convened at the behest of the 1st Respondent and conducted by the 2nd Respondent violate the provisions of Section 3 of the Administrative Justice Act [*Chapter 10:28*] and are hereby set aside.
> 2. The nomination of 3rd Respondent as Chief Chirumhanzu by the 1st and 2nd Respondents be and is hereby set aside.
> 3. The matter is remitted to the 1st and 2nd Respondents for the proceedings of the nomination of Chief Chirumhanzu to be conducted *de novo*, which proceedings shall be attended by the appropriate persons who are the direct descendants of Nherera and Mutizirapi houses.
> 4. The Respondents shall pay costs of suit on an attorney-client scale."

3. The application was opposed by the respondents.

THE BACKGROUND FACTS

4. The applicants are all male adult descendants of Nherera, who was the eldest son of Mhepo, the first Chief Chirumhanzu. They are eligible for appointment to the Chirumhanzu chieftainship. The first respondent is the Minister of Local Government and Public Works and National Housing, cited in his official capacity as the authority responsible for the administration of the Traditional Leaders Act [*Chapter 29:17*]. The second respondent is the Midlands Provincial Council of Chiefs, cited in its official capacity as the authority established in terms of s 35 of the Traditional Leaders Act.

5. The position of Chief Chirumhanzu became vacant following the death of Gerald Mudzengi, the substantive Chief Chirumhanzu, in January 2019.

6. On 6 June 2024, the first and second respondents convened a meeting for the nomination of a person to be appointed as the substantive Chief Chirumhanzu. At the said meeting, the second respondent recommended the appointment of the third respondent as Chief Chirumhanzu. The Minister duly forwarded the nomination to the President for appointment in terms of the law.

7. It was common cause that on 7 January 2025, the third respondent, whose correct name was said to be Abraham Marufu, was appointed as the substantive Chief Chirumhanzu by the President of the Republic of Zimbabwe in terms of s 3(1) and (2) of the Traditional

Leaders Act as read with s 283(a)(i) of the Constitution. This application was filed on 27 February 2025.

8. The applicants' case is that the process for the nomination of the third respondent as the substantive Chief Chirumhanzu was fraught with serious irregularities in that it failed to meet the criteria of fairness, reasonableness and lawfulness. They averred that the meeting to nominate the substantive chief held on 6 June 2024, and convened by the first and second respondents, was attended by many other villagers who were not from the Chirumhanzu royal families, "the appropriate persons" in terms of the law. Only the people from the Chieftainship houses, namely Nherera and Mutizirapi, ought to have attended, as it is in those households that the Chirumhanzu Chieftainship rotates.

9. It was further alleged that the first and second respondents erroneously declared that the last chief came from the Nherera house; hence, the candidate to be nominated should be from the Simba house. They also stated that most of the people from the Nherera and Mutizirapi were not given the chance to speak at the meeting, as the first and second respondents deliberately picked up those from the Simba house to speak. It was also averred that in terms of the collateral-based rotation system, which should be used in terms of the customs and traditions of the clan or families eligible to the Chieftainship, the rotation is among the heirs (the children of Nherera and Mutizarapi) in order of seniority.

10. The applicants further asserted that the third respondent was not the clan's preferred candidate. That he is from the Muzondo sub-house, which was also ineligible, as the headmanship rotates among them. It was also argued that the first and second respondents defied the traditions and customs of "the appropriate persons" in contravention of the Constitution and the Traditional Leaders Act. They also averred that on 7 June 2024, seven representatives of the sub-houses to the Chirumhanzu Chieftainship wrote a petition to the first respondent expressing their dissatisfaction with the decision made on 6 June 2024. They alleged that the letter was not responded to, nor were reasons for the decision furnished to them.

11. On 19 March 2025, the first to third respondents filed an opposing affidavit, all duly represented by the Civil Division of the Attorney General's office. The first to third

respondents' opposing affidavit was not attached to a notice of opposition as required in terms of the rules of court. The affidavit was deposed to by the Minister of Local Government and Public Works. He contended that the first applicant was not the appropriate candidate as he belongs to the Nherera house, which was the last to provide a candidate for the Chieftainship. The Chieftainship, he alleged, had to move to the next house in line, which is the Simba house, also known as Mutizirapi.

12. He further contended that the applicants were trying to change the succession tradition by bringing in a bogus Royal Council. The recommendation and the appointment of the third respondent as Chief Chirumhanzu was in accordance with the law. The appointment, it was also stated, was done in terms of s 283(a) of the Constitution by the President. The first and second respondents, it was further averred, followed the legal requirements and conducted the appointment fairly and legally. That the meeting was also attended by people who are members of the Chirumhanzu Chieftainship, as those who were not were requested to leave the meeting before it commenced. The respondents sought the dismissal of the application with costs.

13. In their answering affidavit, the applicants raised a point *in limine* that there was no valid opposition before the court on the basis that the respondents were barred for non-compliance with rules 59(7) and (8). In particular, it was argued that the respondents failed to file a notice of opposition; the opposing affidavit itself was filed out of time and that after filing the opposing affidavit, the respondents failed to serve the copy thereof on the applicants within seven days and neglected to file a certificate of service within forty-eight hours as required in terms of the rules. The application ought to be treated as unopposed.

14. On the merits, the applicants insisted that the meeting of 6 June 2024 was fraught with gross irregularities. They also stated that Simba and Mutizirapi are not the same. Simba is the son of Mutizirapi, together with Mabotsa and Muzondo/Manhoro. They are the three sub-houses of Mutizirapi. They averred that Simba cannot be treated at par with Nherera and Mutizirapi, the sons of Mhepo, the first Chief Chirumhanzu. They insisted that the respondents erroneously singled out Simba from the third generation and treated him as if he was at par with the main houses of Nherera and Mutizirapi, who are the fathers, and

thereby shutting out the other eight sub-houses of the third generation and taking away their right to the throne.

15. On 9 June 2025, Mr *Nyika* rose up purporting to act for the third respondent. He had filed an assumption of agency for the third respondent. I raised an issue with the irregular notice, as in the papers before me, all the respondents were being represented by the Civil Division of the Attorney-General's office (*"the Civil Division"*). I indicated that he could only assume agency after the Civil Division had renounced agency first. Ms *Mabasa* also submitted that the opposing papers had been filed for the third respondent in error, as they do not normally represent substantive chiefs in court disputes. She further submitted that the third respondent had already been appointed by the President as the substantive Chief Chirumhanzu, a position confirmed by a Cabinet minute. The hearing was subsequently postponed.

16. The Civil Division went on to file a notice of renunciation of agency for the third respondent on 9 June 2025. There was also a letter filed on the same day from the first and second respondents' legal practitioners, to which a letter from the Permanent Secretary in the Ministry of Local Government and Public Works was attached, confirming the appointment of Abraham Marufu as the substantive Chief Chirumanzu by the President. The letter was dated 14 January 2025. To it was also attached the Cabinet Minute No. 199/2024, in terms of which the President appointed the said Abraham Marufu, the third respondent, as the substantive Chief Chirumhanzu on 7 January 2025. On the same day, the third respondent's new legal practitioners, Messrs Nyika Kanengoni & Partners, filed a notice of an assumption of agency as well as the third respondent's notice of opposition.

17. On 17 June 2025, Ms *Mabasa* began by submitting that there were preliminary issues raised by the applicants, but there is now a Cabinet minute on the appointment of the substantive Chief Chirumhanzu by the President in terms of s 283 of the Constitution. I had to stop her from proceeding as the proper procedure was for the court to deal with the preliminary points raised by the applicants first.

THE POINTS IN LIMINE

18. Mr *Kufaruwenga* raised three points *in limine* in his address to the court, firstly that the third respondent's opposing papers filed on 16 June 2025 were not properly before the court, secondly, that the first respondents' heads of argument were filed out of time and the respondents were, therefore, barred and thirdly, that the opposing papers filed for all the respondents were not filed in accordance with the provisions of rule 59(7), were filed out of time and not served and a certificate of service filed within forty-eight hours. Consequently, the respondents are all barred and cannot be heard on the merits. I will have to deal with these preliminary issues first. I must state that the issues were dealt with, together with an application for the removal of the bar made by the first and second respondents.

SUBMISSIONS FROM THE PARTIES ON THE PRELIMINARY ISSUES

19. Mr *Kufaruwenga* submitted that the opposing papers filed by the third respondent on 16 June 2025 were not properly before the court and ought to be struck out. The reason was, firstly, that the third respondent filed opposing papers on 19 March 2025 through the Civil Division. It was argued that it was improper for the third respondent to file a second set of opposing papers. If the third respondent intended to disassociate himself from the papers filed by the Civil Division, he should have followed the procedure set out in rule 42, which deals with an irregular process. If he is saying that the papers were irregularly filed, he must have used rule 42 to have them expunged from the record, but they are still there now.

20. Counsel further argued that while the Civil Division had renounced agency on behalf of the third respondent, that did not erase the papers. Without having them set aside, he is bound by the papers. He, therefore, urged the court to disregard the papers filed by the third respondent a day before the hearing on 16 June 2025.

21. Mr *Kufaruwenga* went on to submit that the next preliminary point is in two parts. Firstly, that the first and second respondents' heads of argument were filed out of time. At p 54 of the record, being the certificate of service of applicants' heads of argument, it shows that the first and second respondents were served with the applicants' heads of argument on 5 May 2025. The *dies induciae* expired on 19 May 2025. The heads were filed five days out of time, and the respondents were barred.

22. It was further submitted that the second part of the point *in limine* is that the opposing papers filed by the respondents were not filed in accordance with the provisions of rule 59(7). He argued that, firstly, only an opposing affidavit was filed without a notice of opposition. The rules provide that both the notice of opposition and the opposing affidavit ought to be filed. Secondly, the opposing papers were defective as they were filed outside the ten days prescribed in the rules. Thirdly, after the defective opposition was filed, it was not served on the applicants within the seven days prescribed in the rules, and also that no certificate of service thereof was uploaded on the system within forty-eight hours. Mr *Kufaruwenga* argued that the opposing papers before the court did not comply with the law. He also submitted that, in any event, rule 59(9) specifies that if you fail to file your notice of opposition in terms of rule 59(8), you are barred. The respondents are not properly before the court as they are all barred. They cannot be heard on the merits. The matter is, therefore, unopposed.

23. On the other hand, Ms *Mabasa*, for the first and second respondents, submitted that with regard to the point that there is no notice of opposition, it was very true that the opposing affidavit did not have that attachment. She reasoned that the advert of the IECMS has brought with it the ease of filing court documents. She argued that there is a notice of opposition generated by the system when a person is requested, while filing, to indicate whether it is a notice of opposition, the date and the name of the parties. Once that is done, the system then leads a person to file the opposing affidavit. The opposing affidavit will be uploaded. Upon being approved by the Registrar, the notice of opposition would have been filed, not an opposing affidavit. She submitted that the record indicates that a notice of opposition was filed as a cover note to the opposing affidavit.

24. Counsel further submitted that there is need to accept the smart existence of the notice of opposition brought by the system. Her argument was also that the non-appearance of a notice of opposition is not fatal, and the matter should be heard on the merits. The rules are not cast in stone. The court has a discretion to rule that the non-appearance is not fatal. Ms *Mabasa* went to submit that there was miscommunication on their part to assume that the notice of opposition had been filed. When the court queried if counsel was conceding that

the respondents were barred, Ms *Mabasa* conceded that there was no valid opposition before the court and that they were barred.

25. Ms *Mabasa* went on to submit that she seeks the indulgence of the court for the bar to be uplifted, taking into account the misconception that they had that they had genuinely thought that their conduct was proper. She admitted that the notice of opposition was not attached and argued that this was because of their opinion that the notice of opposition generated by the system would suffice. She also submitted that she assumed that the delay in filing the notice of opposition was of a day. They were experiencing technical glitches and were assisted at the internet hub.

26. It was her further submission that the first and second respondents accepted being barred and sought the indulgence of the court to allow the opposing affidavit to be part of the record. The delay was not wilful. They had challenges with their internet, and the opposing affidavit was then filed the next day. The matter before the court has serious consequences for chieftainship matters. They believed that their position or input would enable the court to arrive at a proper determination of the matter. Ms *Mabasa* finally submitted that the court must indulge them and have the matter determined on the merits.

27. Mr *Nyika*, for the third respondent, submitted that the third respondent would be very brief. He submitted that the point taken against the third respondent only relates to one issue, that the third respondent filed double papers. I hasten to state that this was not the only issue, as the applicants had raised the issue first in their answering affidavit and their oral submissions that the opposing papers filed by the Civil Division (which filed the papers for all the respondents including the third respondent) were fatally defective and that the respondents were all barred. He further submitted that the last time the parties appeared before the court, it was common cause that the third respondent ought to have filed his papers after counsel said it was erroneous that the papers had been filed on his behalf.

28. It was further submitted that the third respondent did not seek to expunge what had been filed. That he had associated himself with what had been said by the first and second respondents regarding the merits. The affidavit contains the history of the selection process, which is the purview of the second respondent. Mr *Nyika* also argued that the third

respondent, it is common cause, was not out of time in its filing of opposing papers. This, he argued, had not been challenged. What the third respondent sought to do was to place his submissions as the substantive Chief Chirumhanzu. His side of the story must be heard because he was properly appointed. No contradiction is in his affidavit to the position set out in the first and second respondents' papers. There was no double-filing of opposing papers. The third respondent had compiled and filed his opposing affidavit. He further submitted that there being only one point raised by the applicants against the third respondent, the opposing papers before me were properly before the court. The objection must be dismissed. It was stated in an oral submission that they had filed and included the third respondent in error.

29. In his replying submissions, Mr *Kufaruwenga* submitted that regarding submissions made by the first and second respondents, they only dealt with why there was a delay in filing the opposing papers. They did not deal with why service was not effected within seven days and why the certificate of service was not filed. These repeated transgressions show a disdain and disregard for the rules of court. The application for upliftment of the bar was not, therefore, on sound ground. Regarding submissions made by the third respondent, he argued that the procedure adopted by the third respondent was unknown. Rule 59 provides that once an answering affidavit has been filed, no further affidavits can be filed without the leave of the court. He did not hear Mr *Nyika* say that the leave of the court or judge was sought. In the case of a clear prohibition by the rules, he filed an affidavit. That was clearly improper. The second affidavit filed by the third respondent was not properly before the court. In any case, he also submitted, one cannot file opposing affidavits twice.

ANALYSIS OF THE LAW AND THE FACTS

30. The relevant provisions of subrules (7), (8) and (9) of rule 59 governing the filing of notices of opposition and the opposing affidavit(s) read as follows:

> "(7) The respondent shall be entitled, within the time given in the court application in accordance with subrule (6), to file a notice of opposition, together with one or more opposing affidavits.
> (8) As soon as possible, in any event not later than seven days after filing a notice of opposition and opposing affidavit in terms of subrule (7) the respondent shall serve copies of them upon the applicant and, as soon as

possible thereafter, but not later than forty-eight hours, shall file with the registrar proof of such service in accordance with subrule (8) of rule 16.

(9) A respondent who has failed to file a notice of opposition and opposing affidavit in terms of subrule(8) shall be barred. (my emphasis)

31. It is trite law that a valid opposition consists of a notice of opposition filed together with an opposing affidavit. This is also apparent from rule 59(7). See also *Larries Services (Pvt) Ltd* v *Blackiynx (Pvt) Ltd & Ors* HB 187/22 where DUBE-BANDA J correctly stated:

> "A valid notice of opposition consists of a notice of opposition in terms of Form 29A together with one or more opposing affidavits. In *casu*, the 1st respondent filed a notice of opposition and an opposing affidavit. Therefore, there is a valid notice of opposition before the court."

In *casu*, there is no dispute that the first to third respondents only filed an opposing affidavit on 19 March 2025. The opposing affidavit was not accompanied by a notice of opposition as required by the court rules. This rendered the purported opposition a nullity.

32. Ms *Mabasa* initially sought to explain to the court that the IECMS itself creates a notice of opposition, and in the advert of the new system, the omission of a notice of opposition uploaded together with the opposing affidavit should not be fatal. I failed to understand the basis of this argument. The rules are very clear that, in terms of subrule (7) of Rule 59, the notice of opposition must be accompanied by one or more opposing affidavits. These are filed together. It cannot be said that the system generates a notice of opposition. The copy is uploaded together with the opposing affidavit as part of the filing process. The rules of court, as amended by SI 84 of 2024, in particular, rule 2 defines the "date of filing" as "the date on which any pleading envisaged by these rules is lodged with and accepted by the Registrar". The amendment of the rules necessitated by the advent of the IECMS did not change the requirements under rule 59(7), requiring that the notice of opposition be filed together with the opposing affidavit and that these must be considered filed once lodged and accepted by the Registrar. There is no room, therefore, for the alleged system-generated notice of opposition, which only existed in the imagination of counsel for the first and second respondents.

33. Ms *Mabasa*, however, went on to concede that there was no valid opposition before me and then made an application for the indulgence of the upliftment of the bar. That should settle the issue.

34. Further, in any case, the peremptory provisions of rule 59(8) require that the notice of opposition be served within seven days after filing and a certificate of service filed within forty-eight hours of the service. The clear effect of the non-compliance is that the respondents shall be barred in terms of rule 59(9). This legal position was further confirmed in *The Joint Executors of the Estate Late MacDonald Chapfika & Anor* v *Penniwill (Pvt) Ltd & Ors* HH 545/24 at p 5, where MUSITHU J had this to say:

> "Rule 59(9) of the Rules states that a respondent who fails to file a notice of opposition and opposing affidavit in terms of subrule (8) shall be barred. As noted, r 59(8) deals with the service of the opposing papers and the filing of the proof of service. The filing of a certificate of service is not optional, but mandatory just as is the case with the service of a notice of opposition and an opposing affidavit. The stipulation of the period within which a respondent is required to file proof of service of the notice of opposition was not in my view just done *ex abundanti*, but for a reason. The reason was to promote the expeditious disposition of cases in line with the policy of the law that there should be finality to litigation.
>
> …To penalize errant litigants who do not wish to prosecute their matters to finality, the drafters of the rules considered it proper to impose deadlines for the service of the notice of opposition and opposing affidavits and the filing of the proof of service. The old High Court Rules, 1971, did not impose such a deadline.
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> It is common cause that a failure to comply with specific timeframes imposed by the rules of court results in the defaulting party being barred. In terms of r 39(4)(b) of the Rules, a party that has been barred has no right of audience before the court, save for the purposes of applying for the removal of such bar. A party that has been barred must act with dispatch, as a clear demonstration that they are not taking the rules of court and court business for granted." (my emphasis)

See also *Hopgood* v *The Minister of Lands, Agriculture, Water and Rural Resettlement* HH266/23 where the court said:

> "The respondent filed his notice of opposition through his legal practitioners on 19 January 2022, the day the *dies induciae* was set to expire. The notice of opposition was not served on the applicant's legal practitioners as commanded by r 59(8). The respondent was consequently barred in terms of r 59(9)."

35. In this case there was no dispute that besides filing a fatally defective opposition in the form of only an opposing affidavit, the first to third respondents' legal practitioners failed to serve the said opposition on the applicants and file a certificate of service within forty-eight hours as required by the peremptory requirements of rule 59(8). The effect of the non-compliance with these mandatory provisions is that the first to third respondents were automatically barred in terms of subrule (9) of rule 59. It also meant that the purported opposing affidavit filed on 19 March 2025 was fatally defective and, therefore, a nullity. It

is trite at law that failure to comply with a peremptory requirement of a statute renders the pleading a nullity. See *Moyo & Ors* v *Zvoma & Anor* SC28/10. Once barred, a litigant cannot file any further pleadings unless it is an application for the removal of the bar. He/she, too, has no right of audience in court unless it is for the purposes of making an application for the removal of the bar. See rule 39(4).

36. There was no doubt that the first, to third respondents were all barred. The record is very clear that the third respondent was also represented by the Civil Division. The opposing affidavit and the heads of argument filed by the Civil Division were duly filed on behalf of all three respondents. The attempts by Mr *Nyika* to separate the third respondent from the pleadings filed by the Civil Division for all the respondents were legally untenable. The fatally defective opposition filed by the Civil Division equally affected the third respondent. Ms *Mabasa* simply filed a notice of renunciation of agency for the third respondent on 9 June 2025, well after the opposition had already been filed on record. Mr *Nyika* then assumed agency for the third respondent on the same day. That assumption of agency does not have the effect of expunging the papers which have already been filed for the third respondent from the record. While Ms *Mabasa* on 9 June 2025 submitted that they made an error in assuming agency for the third respondent as they normally do not represent substantive chiefs in courts, she did not make any application for the rectification of any error or to have the record corrected that they only acted for the first and second respondents. She simply officially renounced agency, and Mr *Nyika* then assumed agency for the third respondent.

37. The renunciation and the assumption of agency merely change the legal practitioner for the party. That process does not affect the pleadings already filed of record for the litigant. The pleadings remain part of the record unless the new legal practitioner takes steps to have them supplemented or expunged from the record. The new legal practitioner is bound by those pleadings, as is the party himself. Accordingly, the assumption by Mr *Nyika* did not take away the already filed opposing papers for the third respondent. The same fate befalling the first and second respondents would befall the third respondent with equal force. He cannot be separated from the fatally defective opposition filed on his behalf by the Civil Division. He, too, was automatically barred in terms of rule 59(9). The

respondents were all barred by operation of the law and could not be heard except upon a successful application for the removal of the bar. The argument that the respondents' heads of argument had been filed out of time could not seriously detain the court since the respondents had no right to file any further pleadings once barred unless the bar is removed. Whether the heads of argument were filed out of time was, therefore, inconsequential as the respondents had been barred.

38. Since the third respondent's case had already been presented through the papers filed on 19 March 2025 by the Civil Division, it followed that he could not file a fresh or another notice of opposition on 16 June 2025 without the leave of the court. It is trite that parties can only file their opposing affidavits once. The law does not permit the respondent to file two separate sets of opposing affidavits. The only way the respondent could amend or seek to supplement what is already filed on his behalf is to seek leave to file a supplementary affidavit. Rule 59(12) is very clear in this regard. It states that:

> "After an answering affidavit has been filed, no further affidavits may be filed without the leave of the court or a judge."

In *casu,* the applicants filed their answering affidavits on 14 April 2025. This means that the third respondent could not competently file any further opposing affidavit without the leave of the court. There was no leave sought by the third respondent to file the opposing papers filed on 16 June 2025. I agree with Mr *Kufaruwenga* that the filing of opposing papers by the third respondent for the second time without the leave of the court and without seeking to have those papers already filed on his behalf by the counsel for the other respondents replaced or supplemented was improper. It rendered those opposing papers filed on 16 June 2025 by Mr *Nyika* a nullity, and they ought, therefore, to be struck out.

39. The third respondent remained barred together with the first and second respondents. The points *in limine* that the respondents' opposing papers were a nullity, that the respondents were barred and that the third respondent's opposing papers filed on 16 June 2025 were improperly before the court must be upheld.

APPLICATION FOR THE REMOVAL OF BAR

40. I shall begin with the position of the third respondent. Mr *Nyika* erroneously took the view that the third respondent was properly before the court and that his second papers were also

proper. He failed to appreciate that the assumption of agency alone does not mean that the papers already filed for the litigant are no longer his pleadings. The third respondent's opposing papers were already before the court, albeit they were fatally defective and he was equally barred with the other respondents. The mere allegation that his papers had been filed in error does not make the papers disappear without an application being made to seek any correction of the alleged error. As alluded to above, no such application was made either by Ms *Mabasa* or Mr *Nyika*. The defective papers filed for him remained his papers too and he was equally bound by the legal consequences of their non-compliance with the court rules.

41. Mr *Nyika* even submitted that he did not seek to expunge the opposing papers already filed for the third respondent. He associated himself with the averments in the same papers on what was said on the history of the selection process. He further submitted that, as the substantive Chief Chirumhanzu, his side of the story must be heard because he was properly appointed. Mr *Nyika* misread the law. A party who pays little regard to the provisions of the court rules may find himself non-suited. The rules exist to regulate the court process and are essential for the proper administration of justice. See *Minister of Mines & Mineral Development & Anor* v *Fidelity Printers & Refiners (Pvt) Ltd & Anor* CCZ 9/22 at p 14, where the court stated:

> "The court's rules regulate access to this or any other court. The need to pay regard to the rules when instituting proceedings was emphasised in *Mupungu v Minister of Justice, Legal and Parliamentary Affairs* CCZ 07/21, where this court stated that:
>
> > "One cannot institute an action or application in the High Court, or any other court, without due observance of and compliance with the Rules of that court. The Rules inform a litigant of what is required of him to access the court concerned. If he fails to observe or comply with those Rules, he will inevitably be non-suited. To conclude this aspect of the matter, I am satisfied that the proceedings *a quo* were fatally defective and constitute a nullity for failure to comply with r 18 of the High Court Rules…."

42. The merits or otherwise of the third respondent's defence do not arise where the question is essentially whether he complied with the court rules or not. Having been barred together with the other respondents and his opposing papers being a nullity too, the court would treat the application as unopposed unless the court removes the bar. See the *proviso* to rule 59(26)(b). There was no application for the removal of the bar made by the third

respondent. In the absence of a formal application, the court could not *mero motu* grant the indulgence of a removal of the bar. It is a settled position in our law that an indulgence cannot be granted where it is not sought. See *Forestry Commission* v *Moyo* 1997 (1) ZLR 254 (S), which specifically dealt with an application for condonation. The reasoning therein applies to an application for the removal of the bar, which is also an indulgence sought from the court. The court accordingly treated the application as unopposed in respect of the third respondent, who did not make an application for the removal of the bar or seek condonation to file a valid opposition.

43. As for the first and second respondents, Ms *Mabasa* conceded that they were barred. She accepted that there was no valid opposition before the court. She rightfully applied for the removal of the bar. It is trite at law that an application for the removal of the bar is an indulgence the grant of which is within the court's discretion. The court exercises its discretion by considering well-established requirements. See *Chapfika* v *Central African Building Society* HH 2/18 at p. 3, where TAGU J outlined these requirements for the upliftment of bar as having been spelt out in the case of *Smith N O* v *Brummer N O & Anor* 1954 (3) SA 352 (O) at p 358 as follows:

> "(a) A reasonable explanation for the Applicant's delay is forthcoming;
> (b) The Application must be *bona fide* and not made with intent to delay the other party's claim;
> (c) The Applicant must not be guilty of a reckless or intentional disregard of the rules of court;
> (d) The Applicant's case should not be obviously without foundation; and
> (e) The other party should not be prejudiced to an extent which cannot be rectified by a suitable Order as to costs."

44. The law is clear, therefore, that the requirements for an application for removal of the bar are, thus, mainly the extent of the delay or the non-compliance, the reasonableness of the explanation for the delay or default, the prospects of success on the merits and the prejudice to the other party if the application is granted. The application for the removal or upliftment of the bar is not there for the mere asking. It is also settled that the above factors are generally considered cumulatively. Ms *Mabasa* submitted that the delay was just a day. I do not agree as regards the second respondent. As the certificate of service at p 25 shows, the first respondent was served with the application on 3 March 2025. He had up to 17 March 2025 to file his notice of opposition. With regard to the second respondent, the

application was served on 28 February 2025. The second respondent had up to 14 March 2025 to file the notice of opposition. The purported opposition was only filed on 19 March 2025. Indeed, for the first respondent, it was filed a day late, but for the second respondent, the delay was for two days. While the extent of the delay was not inordinate, I did not find the explanation for the non-compliance or the default to be reasonable.

45. Ms *Mabasa* alleged that they faced technical glitches with the system and had to be assisted at the internet hub to file their papers the next day. The assumption was as if 18 March was the due date for the first and second respondents, but that was not correct, as shown above. There was no indication as to when this technical problem arose and who attended to the filing at the internet hub. There was no evidence to establish all this, save for mere submissions from Ms *Mabasa* from the bar. Counsel could not lead evidence from the bar. In any case, a diligent legal practitioner cannot wait until the last day to file papers. The absence of evidence of this technical glitch, evidence of who filed the papers and assisted them in filing exposed counsel as not being honest with the court. The law is settled that one who fails to comply with the rules must give a full explanation for the non-compliance with the court rules. He is also required to be candid with the court. See *Zimslate Quartize (Pvt) Ltd & Ors* v *Central African Building Society*, SC 34/17 at p. 7, para 17, where the court held that:

> "An applicant, who has infringed the rules of the court before which he appears, must apply for condonation and in that application explain the reasons for the infraction. He must take the court into his confidence and give an honest account of his default in order to enable the court to arrive at a decision as to whether to grant the indulgence sought. An applicant who takes the attitude that indulgences, including that of condonation, are there for the asking does himself a disservice as he takes the risk of having his application dismissed."

46. There was also no reasonable and full explanation as to why counsel filed a non-compliant opposition. No explanation was even proffered why the said opposition was not served within seven days as required by the court rules and also a certificate of service filed within forty-eight hours of such service. It is clear that the respondents simply disregarded the peremptory provisions of rule 59(8) without any valid reason.

47. Ms *Mabasa* did not address the court on the other requirements of an application of this nature, which include *inter alia*, the prospects of success of the respondents' defences on the merits and the prejudice to be suffered by the applicants if the application is granted.

She completely failed to canvass these other requirements that the court must consider in the exercise of its discretion. In *Doves Funeral Assurance (Pvt) Ltd* v *Harare Motorway (Pvt) Ltd & Ors* SC 64/23), the Court, while dealing with an application for condonation and reinstatement of an appeal, stated that:

> "Prospects of success refer to the question of whether a court of appeal could reasonably arrive at a conclusion different from that of the court or tribunal of first instance. In *Essop* v *S*, [2016] ZASCA 114, the court in defining prospects of success held that;
>
> > "What the test for reasonable prospects of success postulates is a dispassionate decision, based on the facts and the law that a court of appeal could reasonably arrive at a conclusion different to that of the trial court. In order to succeed, therefore, the appellant must convince this court on proper grounds that he has prospects of success on appeal and that those prospects are not remote, but have a realistic chance of succeeding. More is required to be established than that there is a mere possibility of success, that the case is arguable on appeal or that the case cannot be categorised as hopeless. There must, in other words, be a sound, rational basis for the conclusion that there are prospects of success on appeal".

48. The respondents ought to have demonstrated that they have prospects of success on the merits. The prospects should have been clearly articulated in the submissions from Ms *Mabasa*. The court has no obligation to sift through the record to find whether the respondents' defence has prospects of success. The position of the law in this regard was authoritatively set out in the *Doves Funeral Assurance* case, *supra*, where MAKONI JA said:

> "He expects me to sift through the main appeal file and extract what I may consider to be the prospects of success in the appeal. Firstly, there is no such invitation by the applicant in the founding affidavit for me to have reference to that file. Secondly, there is no such obligation on a judge dealing with such an application. In *John Chikura & Anor* v *Al Shams Global BVI Limited* SC17/17 the following was stated in respect of prolix grounds of appeal;
>
> > "It is not for the court to sift through numerous grounds of appeal in search of a possible valid ground; or to page through several pages of 'grounds of appeal' in order to determine the real issues for determination by the court. The real issues for determination should be immediately ascertainable on perusal of the grounds of appeal."
>
> In my view the same sentiments apply with equal force to the applicant's submission that I should go through the record of appeal to determine whether there are prospects of success on appeal. These should, however, be immediately ascertainable from the applicant's founding affidavit. Thirdly this flies in the face of the authorities referred to above."

49. The application for the removal of the bar clearly fell short of the requirements of an application of this nature. It is trite that such an application ought to be dismissed. I,

therefore, dismissed it. I fully associate myself with the remarks of the Supreme Court in the *Doves Funeral Assurance* case, where it was further held that:

> "The application, falling short of the requirements of an application, such as the present one, ought to be dismissed. Allowing the matter to proceed to the merits would be a waste of valuable judicial resources which should be directed to worthy causes."

50. In the premises, in respect of the preliminary issues I had to deal with and the application for the removal of the bar, I issued the following orders:

    1. The application for condonation and the removal of the bar is dismissed.
    2. The first, second and third respondents' opposing affidavit filed on 19 March 2025 is struck out.
    3. The opposing papers filed by the third respondent on 16 June 2025 are struck out.
    4. The application shall proceed as unopposed.

THE UNOPPOSED APPLICATION

51. Mr *Kufaruwenga* submitted that the matter being unopposed, should be granted in terms of the draft order. It was common cause that the third respondent, in particular, Abraham Marufu, was appointed as the substantive Chief Chirumhanzu by the President of the Republic of Zimbabwe on 7 January 2025. The legal point which exercised the court's mind was whether or not this matter was moot or academic. This question arose as the nomination is part of the appointment process of a substantive chief, which ends with the President of Zimbabwe, the appointing authority in terms of s 3(1) and (2) of the Traditional Leaders Act. With the President having appointed Abraham Marufu as the substantive Chief Chirumhanzu, the question is whether the applicants could separate the nomination from the appointment process and proceed as if nothing had happened after the nomination without citing the President and seeking the setting aside of the appointment itself.

52. I asked Mr *Kufaruwenga* to address me on the legal point of mootness. Mr *Kufaruwenga* accepted that he was aware of the appointment of Abraham Marufu as the substantive Chief Chirumhanzu by the President and had sight of the Cabinet minutes thereof. In his view, that appointment did not render the application academic. He argued that the issue of the appointment is not before the court. The application before the court is attacking an

administrative process done on a particular date and is being made in terms of the Administrative Justice Act. He further argued that the President was not a party, but the order sought, if granted, can still be used. Ultimately, the President's appointment will be dealt with. He insisted that the matter was not moot and that the order sought in the draft order ought to be granted.

THE ISSUE FOR DETERMINATION

53. The sole question for determination is whether or not the application is moot.

THE LAW ON MOOTNESS

54. It is a settled principle of the law that a court will not decide a case if the dispute has become academic or no longer presents a live controversy arising from changed circumstances or the occurrence of some events outside the record. The doctrine of mootness imposes a limitation on justiciability. The law on mootness was remarkably restated in *Citizens for Coalition of Change & Ors* v *Ncube & Ors* SC 26/24, where CHATUKUTA JA had this to say:

> "13. The doctrine of mootness and what it entails has been clearly explained in a number of cases. The case of *Khupe & Anor* v *Parliament of Zimbabwe & Ors* 2019 (3) ZLR 915 (CC) sets out what the doctrine of mootness entails. Firstly it sets out what constitutes mootness and its impact on the proceedings before the Court. This was explained at p 920 paras C – G as follows:
>
> > "A court may decline to exercise its jurisdiction over a matter because of the occurrence of events outside the record which terminate the controversy. The position of the law is that if the dispute becomes academic by reason of changed circumstances the court's jurisdiction ceases and the case becomes moot … The question of mootness is an important issue that the court must take into account when faced with a dispute between parties. It is incumbent upon the court to determine whether an application before it still presents a live dispute as between the parties."
>
> The Court further held as follows:
>
> > "The position of the law is that a court hearing a matter will not readily accept an invitation to adjudicate on issues which are of 'such a nature that the decision sought will have no practical effect or result."
>
> 14. Secondly, the *Khupe* case (*supra*) then sets out circumstances under which the courts may entertain a matter even though it has been deemed moot. This was clearly set out at 923 F - G as follows:
>
> > "The mere fact that the matter is moot does not constitute an absolute bar to a court to hear a matter. Whilst a matter may be moot as between the parties, that does not without more render it unjustifiable. The court retains a discretion to hear a moot

> case where it is in the interests of justice to do so. *J T Publishing (Pty) Ltd* v *Minister of Safety and Security* 1997 (3) SA 514 (CC) at 525A-B."

The court further stated as follows:

> "Courts in this jurisdiction do pay homage to the demands of the adversarial system of resolution of disputes. The adversarial system contemplates a situation in which both parties before a court have an interest in the outcome of the case. The system envisages a situation where the determination of the matters in dispute would have practical and tangible consequences for the contending parties. It would not be in the interests of justice for a court to determine a moot case where its decision has no practical effect on the parties"

15. In *Zimbabwe School Examinations Council* v *Mukomeka & Anor* SC 10/20 at pp 4 – 5 it was explained as follows:

> "Therefore, any judgment of this Court would not have any impact on their situation and no practical consequences would flow from granting the relief sought by the appellant. The Court must deal with a controversy that is live and not one that is moot. The appellant "must not have a mere academic interest in the right or obligation in question but … some tangible and justifiable advantage" in relation to that right or obligation *per* CHIDYAUSIKU CJ in *Ngulube* v *Zimbabwe Electricity Authority & Anor* SC 52–2002. The present matter is clearly academic."

16. In the case of *Ndewere v President of Zimbabwe N.O & Ors* SC 57/22 in deciding the effect of mootness on a matter, the court held as follows at p 22:

> "From the above authorities, it is settled that where the court makes a finding that an appeal is moot and declines to exercise its discretion to hear the appeal in the interests of justice, the court declines jurisdiction and dismisses the matter. That is the fate that befalls the present appeal."

55. The same principle had already been followed in *MDC & Ors* v *Mashavira & Ors* SC 56/20 at p 33, where it was stated:

> "…a court may decline to exercise its jurisdiction over a matter because of the occurrence of events outside the record which terminate the controversy between the parties. … [I]f the dispute becomes academic by reason of changed circumstances, the case becomes moot and the jurisdiction of the court is no longer sustainable."

ANALYSIS

56. Applying the above principle, it is clear that the matter is moot. It is common cause that the President by virtue of the powers vested in him in terms of s 3(1) and (2) of the Traditional Leaders Act as read with s 283 of the Constitution, duly appointed Abraham Marufu, the third respondent, as the substantive Chief Chirumhanzu on 7 January 2025. Mr *Kufaruwenga* accepted that this was an admitted fact and that he had seen the Cabinet minute confirming the President's ultimate decision. The appointment of a substantive chief is a process, not an event. It begins with the nomination or selection process held by "the appropriate persons" and the Minister, including the second respondent in this case. The relevant provisions of s 3 of the Traditional Leaders Act clearly state as follows:

"**3 Appointment of chiefs**

(1) Subject to subsection (2), the President shall appoint chiefs to preside over communities inhabiting Communal Land and resettlement areas.

(2) In appointing a chief in terms of subsection (1), the President—

(a) shall give due consideration to—

(i) the prevailing customary principles of succession, if any, applicable to the community over which the chief is to preside; and

(ii) the administrative needs of the communities in the area concerned in the interests of good governance; and (b) wherever practicable, shall appoint a person nominated by the appropriate persons in the community concerned in accordance with the principles referred to in subparagraph (i) of paragraph (a):

Provided that, if the appropriate persons concerned fail to nominate a candidate for appointment as chief within two years after the office of chief became vacant, the Minister, in consultation with the appropriate persons, shall nominate a person for appointment as chief.

(3) Subject to section seven, the President may, where he is of the opinion that good cause exists, remove a chief from office."

57. There is no dispute that the nomination was done on 6 June 2024, the proceedings of which the applicants seek to impugn. The third respondent was nominated by the appropriate persons of the community concerned, though this has been challenged by the applicants. After his nomination, his name was recommended by the Minister to the President for appointment. The President then subsequently appointed him as the substantive Chief Chirumhanzu, thereby completing the process of appointing a substantive chief. This act by the President brings the whole process to an end, and the appointment is the act of the President. He acts to appoint the person nominated by the appropriate persons, or if they fail to do so within the prescribed period, the person so nominated by the Minister in consultation with the appropriate persons. Since the nomination constitutes part of the appointment process, one cannot, therefore, purport to challenge the nomination alone where the appointment itself has been made. The President becomes an important part of the process and, accordingly, becomes an interested party.

58. In their draft order, the applicants only sought the nomination proceedings of 6 June 2024 to be set aside as well as the nomination of the third respondent. They also sought that the matter be remitted to the first and second respondents to conduct the nomination proceedings *de novo*. There is no reference at all to the appointment already done by the President in terms of s 3 of the Traditional Leaders Act. The applicant cannot seek to

impugn the selection or nomination process without the joinder of the President, and the setting aside of the appointment itself.

59. In *Marange* v *Marange & Ors* SC 1/21 at p 7 the Supreme Court held that s 283 of the Constitution is not a substantive provision that impacts directly on the law governing the appointment and removal of traditional leaders and that as with s 3 of the Traditional Leaders Act does not oust the original review jurisdiction of the High Court codified by s 26 of the High Court Act [*Chapter 7:06*]. In my view, such a review can only be sustainable once the appointment has already been made by the President if the President is cited as the appointing authority and the relief sought includes the setting aside of the said appointment of the substantive chief. However, as confirmed by the court in the *Marange* case, *supra*, it would not necessarily be the exercise of the discretion by the President which would be reviewed, but the acts and conduct of the Minister. Thus, the court further held that:

> "It follows from the foregoing that the court *a quo* was correct in adopting the stance that it was invested with the requisite jurisdiction to review the acts and conduct of the Minister, in his capacity as an administrative authority, on the recognised grounds of illegality, irrationality or procedural impropriety. More specifically, what is reviewable is not how the President exercises his discretion but whether those who formulate their advice to him acted on sound principle. See *Rushwayo* v *Minister of Local Government & Anor* 1987 (1) ZLR 15 (S), at 18F-19B; *Chigarasango* v *Chigarasango* 2000 (1) ZLR 99 (S); *Moyo* v *Mkoba & Ors* SC 35/2013; *Munodawafa* v *Masvingo District Administrator & Ors* HH 571-15."

60. For the court to properly exercise its review powers over the acts and conduct of the first and second respondents in the nomination process, the applicants must cite the President, the appointing authority and must as part of the relief sought incorporates an order for the setting aside of the appointment of Abraham Marufu as the substantive Chief Chirumhanzu. The applicants cannot, in my view, pursue only the nomination and end there, where such nomination has since culminated in the final appointment by the President. It would be merely academic for the court to simply consider an application where the relief sought is targeted at the nomination only, as if the process is still at that stage.

61. Applying the principles enunciated in the cases of the *Citizens for Coalition of Change* and *Ndewere*, even after finding that the matter is now moot, the court must proceed to the second rung of the enquiry, which is whether it would be in the interests of justice that I still determine the matter. The law is clear, therefore, that the principle of mootness is not an absolute bar to the justiciability of the matter. The court has the discretion to hear a moot case if it is in the interests of justice to do so. In *MDC & Anor* v *Mashavira & Ors supra*, at 34, PATEL JA (as he then was) p 34 stated as follows:

> "This may arise where the court's determination will have some practical effect, either on the parties concerned or on others, and the nature and extent of such practical effect, or because of the importance or complexity of the issues involved – *Independent Electoral Commission* v *Langeberg Municipality* 2001 (3) SA 925 (CC), at para 11. In short, the court may exercise its discretion to hear a moot issue by reason of its significance, practical or otherwise, and the need for an authoritative determination on that issue in the interests of justice."

62. Further, in *ZIMSEC* v *Mukomeka & Anor* SC 10/20 at pp 6-7, the court set out a two–stage approach in determining whether or not a matter is moot. The court cited the Supreme Court of Canada, in *Borowski* v *Canada (Attorney General)* [1989] 1 SCR 342, where it was stated that:

> "It is first necessary to determine whether the requisite tangible and concrete dispute has disappeared rendering the issues academic. If so, it is then necessary to decide if the court should exercise its discretion to hear the case."

At p 7, the court further held in respect of the second stage of an inquiry on mootness, that:

> "The next step in the analysis is to decide whether or not the court should exercise its discretion to hear the case. In that respect, courts are guided by the rationale and policy considerations underlying the doctrine of mootness – *Borowski*'s case, *supra*. The overriding consideration is whether or not it is in the interests of justice to hear a moot case. The factors to be taken into account in that regard were lucidly enunciated by the Constitutional Court of South Africa in *Independent Electoral Commission* v *Langeberg Municipality* 2001 (3) SA 925 (CC) at para 11:
>
> > '… discretion must be exercised according to what the interests of justice require. A prerequisite for the exercise of the discretion is that any order which this Court may make will have some practical effect either on the parties or on others. Other factors that may be relevant will include the nature and extent of the practical effect that any possible order might have, the importance of the issue, its complexity, and the fullness or otherwise of the argument advanced.'"

63. In this case, my view is that it is not in the interests of justice for this court to hear this moot matter. Mr *Kufaruwengu* failed to satisfy the court that such determination of the

moot case was necessary in the interests of justice. There is no practical effect that would be achieved, given that the process had already progressed beyond the nomination. The President, as the appointing authority, having appointed the third respondent as the substantive Chief Chirumhanzu, means that the challenge to the appointment must now be made in the context of the whole process having been finalised by the act of the President. The proper relief would incorporate the setting aside of the appointment itself. It would also require the joinder of the President, the appointing authority. There is nothing important arising in respect of the issue before the court. The issue is also not complex enough to necessarily invite the court to pronounce itself on the moot issue. It would also not be in the interests of justice for the dispute to be considered in a piecemeal fashion. The issue of whether there were reviewable acts and conduct of the first and second respondents must be looked at in the proper context of the appointment having been made by the President.

64. The appointment of Abraham Marufu as the substantive chief by the President is said to have been done in accordance with the customs and traditions of the community concerned. The applicants cannot seek to separate the nomination from the appointment process. The situation would have been different if the third respondent had not yet been appointed by the President as the substantive chief. The court, therefore, is not inclined to hear the moot case.

DISPOSITION

65. I find the matter to have been overtaken by events. The doctrine of mootness was applicable. There was no reason for the court to hear the moot case. It was not in the interests of justice for me to do. Accordingly, the court declined to exercise its jurisdiction over this matter on the principle of mootness.

66. For the above reasons, the court entered the judgment as aforestated.

DEMBURE J: ……

Kufaruwenga & Associates, applicants' legal practitioners

Civil Division of the Attorney-General's Office, 1st & 2nd respondents' legal practitioners
Nyika Kanengoni & Partners, 3rd respondent's legal practitioners